

**INDIVIDUAL/CONTROLLING PERSON - SELF CERTIFICATION FORM
(FATCA AND CRS)**

**個人/控權人-自我證明表格
(海外帳戶稅收合規法案與通用報告準則)**

PLEASE READ THESE INSTRUCTIONS BEFORE COMPLETING THE FORM.

請於填寫表格前先閱讀以下說明

Regulations based on Foreign Account Tax Compliance Act ("FATCA") and Organisation for Economic Co-operation and Development ("OECD") Common Reporting Standard ("CRS") require financial institutions to collect and report certain required information based on an individual account holder's or controlling person of an entity account holder's tax residency status.

根據“海外帳戶稅收合規法案”(“FATCA”)和經濟合作與發展組織(“OECD”)“通用報告準則”(“CRS”)之規定，要求金融機構按照帳戶持有人或實體帳戶之控權人的稅務居民身份收集及匯報若干所需資料。

Each jurisdiction has its own rules for defining tax residence. In general, tax residence is the country in which you live. Special circumstances (such as studying abroad, working overseas, or extended travel) may cause you to be resident elsewhere or resident in more than one country at the same time (multiple tax residencies). The country/countries in which you pay income tax are likely to be your country/countries of tax residence. For more information on tax residence, please consult your tax adviser or the information at the following link for FATCA and CRS at <https://www.irs.gov/> and <http://www.oecd.org/tax/automatic-exchange/crs-implementation-and-assistance/> respectively.

每個司法管轄區均按其自身的規則釐定稅務居民的定義。一般來說，您的稅務居民身份是您所居住的國家。若干特別情況(如出國留學，在海外工作或長期旅行)可能導致您成為其他地方的居民，或同時成為超過一個國家的居民(多重稅務居民身份)。您繳納所得稅的國家可能是您稅務居民身份所在國。相關稅務居民身份詳情，請諮詢您的稅務顧問，或瀏覽下列有關 FATCA 或 CRS 的網頁資料：<https://www.irs.gov/>和 <http://www.oecd.org/tax/automatic-exchange/crs-implementation-and-assistance/>

If your tax residency status (or that of account holder/controlling person, if you are completing the form on his/her behalf) is located outside of the country in which this account is maintained, we may be legally obliged to pass on the information in this form and other financial information with respect to the financial accounts to the tax authorities in the country where the financial institution is located and/or US Internal Revenue Service.

如果您的稅務居民身份(或您所代表的帳戶持有人/控權人的稅務居民身份)位於本帳戶維持所在國之外，本行負有法律責任將本自我證明表格內的資料及與金融帳戶有關的其他金融資料，轉交予金融機構當地稅務機關及/或美國國家稅務局。

This form will generally remain valid unless there is a change in circumstance relating to your tax residency status. **You must notify us within 30 days** if there is a change in circumstance that makes any of the information provided in this form incorrect or incomplete and provide an updated self-certification form.

一般而言，本自我證明表格屬將持續有效，直至您的稅務居民身份發生變化為止。若具有任何導致本自我證明表格所提供的資料不實或不完整的變動，請於 **30 日內通知本行**，並提供最新的自我證明表格。

This form is intended to request information only where such request is not prohibited by applicable local law or regulations.

本自我證明表格僅作為要求提供資料之用，而相關要求不受當地適用法律或法規禁止。

As a reporting financial institution under FATCA and CRS, we are not allowed to give any tax or legal advice.

作為一家於 FATCA 及 CRS 法規下的申報金融機構，本行不得提供任何稅務或法律意見。

If you have any questions about this form, these instructions, or defining your tax residency status, please speak to your tax adviser or domestic tax authority.

若您對本自我證明表格之內容與說明或對您的稅務居民身份有任何疑問，請諮詢您的稅務顧問或當地稅務機關。

FILING INSTRUCTION

填寫說明

Please use this form:

請使用本自我證明表格

- **If you are an individual/joint account holder, or sole proprietor opening a new account with us, holding an existing account with us, or you are notifying us of a change in circumstances. Please complete Section 1, 2, 3 and 5; or**

若您是個人/聯名帳戶持有人或獨資經營商，在開立新帳戶、持有現有帳戶、或通知情況變更，請填寫第 1、2、3 及 5 部份；或

- **If you are a controlling person of a passive non-financial foreign entity under FATCA, or controlling person of a passive non-financial entity / an investment entity located in a non-participating jurisdiction managed by another financial institution under CRS (such individuals referred to as “Controlling Person(s)”) and you are either opening a new account with us, holding an existing account with us or you are notifying us of a change in circumstances. Please complete all sections.**

若您是 **FATCA** 項下被動非金融外國實體的控權人，或是由 **CRS** 項下被動非財務實體的控權人 / 位於非參與稅務管轄區並由另一財務機構管理的投資實體的控權人，在您開立新帳戶、持有現有帳戶、或通知情況變更時，請完成所有部份。

The below is only applicable to controlling person of an entity account holder:

以下僅適用於實體帳戶的控權人

Since you are a Controlling Person, please provide your information in the below sections.

由於您是控權人，故請提供以下資料。

Generally, a controlling person is a natural person that holds more than 25% of the shares of the entity or otherwise exercises ultimate control of an entity. For partnership, all individuals who exercise control over a partnership will fall within the definition of controlling persons of that partnership, regardless of the stake held in terms of capital/profits/voting rights of/in that partnership.

一般而言，控權人是指自然人且持有超過百分之二十五的實體股份或對該實體具有最終控制權。就合夥而言，所有對某合夥行使控制權的個人均被視為該合夥的控權人，不論其有權享有或控制該合夥資本／利潤／表決權的程度。

If you are the entity account holder filling in this form on behalf of your controlling persons:

若您是實體帳戶持有人並代表您的控權人填寫本自我證明表格：

Please tell us in what capacity you are signing in Section 5. For example, you may be the custodian or nominee of an account on behalf of the account holder, or you may be completing the form under a power of attorney.

請於第 5 部說明您的代表身份。例如，您可能以託管人或被委任人的身份代表帳戶持有人，或依據授權書填寫本自我證明表格。

WARNING:

It is an offence under section 80(2E) of the Inland Revenue Ordinance, Cap. 112 Laws of Hong Kong, if any person, in making a self-certification, makes a statement that is misleading, false or incorrect in a material particular AND knows, or is reckless as to whether, the statement is misleading, false or incorrect in a material particular. **A person who commits the offence is liable on conviction to a fine at level 3 (i.e. HK\$10,000).**

警告：

根據香港法例第 112 章《稅務條例》第 80(2E)條，如任何人在作出自我證明時，在明知一項陳述在要項上屬具誤導性、虛假或不正確，或罔顧一項陳述是否在要項上屬具誤導性、虛假或不正確下，作出該項陳述，即屬犯罪。一經定罪，可處第 3 級（即\$10,000）罰款。

THE CHINESE TRANSLATION IS FOR YOUR REFERENCE ONLY AND IN CASE OF DISCREPANCIES BETWEEN THE ENGLISH VERSION AND ITS CHINESE TRANSLATION, THE ENGLISH VERSION SHALL APPLY AND PREVAIL.

中文翻譯謹供您參考，若英文版本與其中文翻譯有任何不一致之處，概以英文版本為準。

Section 1 Account Holder/Controlling Person Identification**第 1 部 帳戶持有人/控權人的身份識別資料****Account Holder/Controlling Person Name 帳戶持有人/控權人之姓名:**

Title (e.g. Mr, Mrs, Ms, Miss) 稱謂 (例如: 先生、太太、女士、小姐)

Last Name or Surname 姓氏

First or Given Name 名字

Middle Name(s), if any 中間名 (如有)

Identification Document Type (e.g. HKID Card, passport, other)

身份證明文件類別 (香港身份證、護照、其他):

Document Number

證明文件號碼:

Nationality(ies) 國籍:**Current Residential Address 現時住址:**

[Room/Flat/Block/Name of Building/Estate (if applicable)] 室/單位/座/大樓/屋苑名稱 (如適用)

[Street Number/Street Name] 街道號碼及名稱

[City, Town] 城市, 鎮

[State, Province or County] 州, 省或縣

[Postal/ZIP Code] 郵政編碼/郵遞區號碼

[Country] 國家

Mailing address (if different from above) 通訊位址 (如通訊位址與現時住址不同, 填寫本欄):

[Room/Flat/Block/Name of Building/Estate (if applicable)] 室/單位/座/大廈/屋苑名稱 (如適用)

[Street Number/Street Name] 街道號碼及名稱

[City, Town] 城市、鎮

[State, Province or County] 州、省或縣

[Postal/ZIP Code] 郵政編碼/郵遞區號碼

[Country] 國家

Place of birth 出生地點:

[Town or City of Birth] 鎮或城市

[Country of Birth] 國家

Date of birth (dd/mm/yyyy) 出生日期 (日/月/年): _____

Section 2 FATCA Declaration

第 2 部 海外帳戶稅收合規法案證明

Please answer the following question in order to confirm your status under the relevant tax laws and regulations of the United States.

請回答以下問題，以確認您在相關美國稅法下的狀態。

I am a U.S. person (including a U.S. Resident / U.S. Citizen / U.S. Permanent Resident /

U.S. Green Card Holder / U.S. Resident Alien) #本人是美國人士(包括美國居民/美國公民/美國永久居民/美國綠卡持有人/美國定居之外國人)

☐ Yes - Please provide US Tax Identification Number ("TIN")

是-請提供美國稅務編號(TIN)

			-			-				
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☐ No

否

If you were born in U.S. but you declare that you are not a U.S. person in this form, please also provide us with the "Certificate of Loss of Nationality of the United States".

如閣下申報為非美國人士，但出生地為美國，請同時提供 "Certificate of Loss of Nationality of the United States".

Section 3 CRS Declaration of Tax Residency (Please note you must list ALL tax residencies)**第 3 部 通用報告準則稅務居民身份證明（請注意，您必須列出所有稅務居民身份）**

Please indicate **ALL** (not restricted to five) the account holder/controlling person's jurisdiction of tax residence and associated TIN.

請註明帳戶持有人/控權人**所有**（不限於 5 個）的稅務居民管轄區及稅務編號。

If the account holder/controlling person is a tax resident of Hong Kong, the TIN is the Hong Kong Identity Card Number.

如帳戶持有人/控權人是香港稅務居民，稅務編號是其香港身份證號碼。

If the account Holder/controlling person is a resident for tax purposes in more than FIVE countries, please use a separate sheet.

如帳戶持有人/控權人擁有超過五個國家的稅務身份，請另用一張頁面填寫相關資料。

If a TIN is unavailable please provide reason **A, B or C** where appropriate:

如沒有提供稅務編號，請按情況提供合適的理由 **A、B 或 C**：

- **Reason A:** The country where the Account Holder/controlling person is resident does not issue TINs to its residents
理由 **A**：帳戶持有人/控權人的居留國家並沒有向其居民發出稅務編號。
- **Reason B:** The Account Holder/controlling person is otherwise unable to obtain a TIN (please explain why Account Holder/controlling person is unable to obtain a TIN in the below table if you have selected this reason)
理由 **B**：帳戶持有人/控權人不能取得稅務編號（如選取這一理由，請解釋帳戶持有人/控權人不能取得稅務編號的原因。）
- **Reason C:** No TIN is required (note: only select this reason if the authorities of the country of residence for tax purposes entered below do not require the TIN to be disclosed)
理由 **C**：帳戶持有人/控權人毋須提供稅務編號（注：僅適用於稅務居留國家的主管機關不需要帳戶持有人/控權人披露稅務編號。）

Country/Jurisdiction of Tax Residence 國家/稅務管轄區	TIN 稅務編號	If no TIN is available, enter Reason A, B or C 如沒有提供稅務編號，請填寫理由 A、B 或 C	If Reason B is selected above, explain why the Account Holder is unable to obtain a TIN in the corresponding row below 如選擇理由 B，請在下方相應一行說明為何帳戶持有人無法獲取稅務編號的理由
1.			
2.			
3.			
4.			
5.			

If the account holder/controlling person is not a tax resident in the Jurisdiction of Current Residential Address or Mailing Address, please select one of the following reasons as applicable.

如帳戶持有人/控權人不是現時住址或通訊位址司法管轄區的稅務居民，請根據情況選擇以下一個原因。

The account holder/controlling person is not a tax resident in the jurisdiction of Current Residential Address or Mailing Address (i.e.: _____) where the account holder/controlling person currently reside because (Please select one of the following reasons as applicable):

帳戶持有人/控權人並不是現時住址或通訊位址司法管轄區 (即: _____) 的稅務居民，因為 (請根據情況選擇以下一個原因)：

- ☐ 1. The account holder/controlling person is a student at an educational institution in the jurisdiction of Current Residential Address or Mailing Address and hold the appropriate visa; or 帳戶持有人/控權人是一名學生，就讀於現時住址或通訊位址司法管轄區內的教育機構，並持有相關的有效簽證; 或
- ☐ 2. The account holder/controlling person is a teacher, a trainee, or intern at an educational institution or a participant in an educational or cultural exchange visitor program in the jurisdiction of Current Residential Address or Mailing Address, and hold the appropriate visa; or 帳戶持有人/控權人是一名在現時住址或通訊位址司法管轄區的教師、培訓人員、實習生、或教育或文化交流訪問計劃的參加者，並持有相關的有效簽證; 或
- ☐ 3. The account holder/controlling person is a foreign individual assigned to a diplomatic post or a position in a consulate or embassy in the jurisdiction of Current Residential Address or Mailing Address; or 帳戶持有人/控權人是一名外國人，並被派駐現時住址或通訊位址司法管轄區之外交崗位或在現時住址或通訊位址司法管轄區的領事館或大使館擔任職位; 或
- ☐ 4. The account holder/controlling person is an employee working on a vessel, truck or train travelling between the jurisdiction of Current Residential Address or Mailing Address and other jurisdictions. 帳戶持有人/控權人是一名來往現時住址或通訊位址司法管轄區及其他居留司法管轄區之間行駛途中的船隻、卡車或火車上的僱員。
- ☐ 5. The aforementioned reasonable explanation is NOT applicable to the account holder/controlling person therefore provide the following reasonable explanation to support the jurisdiction of tax residence: 上述合理解釋皆不適用，因此帳戶持有人/控權人提供下列合理解釋以支持帳戶持有人/控權人的稅務居民：

Based on the above certification, please provide any additional information, if considered appropriate: 基於上述聲明，請提供任何其他相關解釋 (如適用):

Section 4 Type of Controlling Person**第 4 部 控權人類別**

If you are an individual account holder only, please omit this section and proceed to Section 5.

如您僅是個人帳戶持有人，請跳至第 5 部。

Please provide the name of entity account holder of which are a controlling person

填寫你作為控權人的實體持有人的名稱

Entity 實體	Name of the Entity Account Holder 實體帳戶持有人的名稱
(1)	
(2)	
(3)	

Please tick the appropriate box to indicate the type of controlling person in the entity above

請在勾選適當方格，指出上列控權人就每個實體所屬控權人類別

Type of Entity 實體類別	Please confirm what type of Controlling Person applicable under CRS 請確認 CRS 項下適用的控權人類別	Entity (1) 實體 (1)	Entity (2) 實體 (2)	Entity (3) 實體 (3)
Legal Person 法人	Individual who has a controlling ownership interest (i.e. more than specified percentage ¹ of issued share capital/capital/profits) 擁有控制股權的個人（即擁有或控制超過指明百分率 ¹ 的已發行股本/資本/利潤）	☐	☐	☐
	Individual who exercises control/is entitled to exercise control through other means (i.e. more than specified percentage ¹ of voting rights) 以其他途徑行使控制權或有權行使控制權的個人（即有權行使超過指明百分率 ¹ 的表決權）	☐	☐	☐
	Individual who holds the position of senior managing official/ exercises ultimate control over the management of the entity 擔任該實體的高級管理人員/對該實體的管理行使最終控制權的個人	☐	☐	☐
Trust 信託	Settlor ² 財產授予人	☐	☐	☐
	Trustee ³ 受託人	☐	☐	☐

	Protector or enforcer ⁴ 保護人或執行人	☐	☐	☐
	Beneficiary ⁵ or member of the class of beneficiaries 受益人或某類別受益人的成員	☐	☐	☐
	Other (e.g. individual who exercises control over another entity being the settlor / trustee / protector or enforcer / beneficiary) 其他（例如：如財產授予人/受託人/保護人或執行人/受益人為另一實體，對該實體行使控制權的個人）	☐	☐	☐
Legal Arrangement other than trust 除信託以外的法律安排	Individual in a position equivalent / similar to settlor 處於相等/相類於財產授予人位置的個人	☐	☐	☐
	Individual in a position equivalent / similar to trustee 處於相等/相類於受託人位置的個人	☐	☐	☐
	Individual in a position equivalent / similar to protector or enforcer 處於相等/相類於保護人或執行人位置的個人	☐	☐	☐
	Individual in a position equivalent / similar to beneficiary or member of the class of beneficiaries 處於相等/相類於受益人或某類別受益人的成員位置的個人	☐	☐	☐
	Other (e.g. individual who exercises control over another entity being equivalent / similar to settlor / trustee / protector or enforcer / beneficiary) 其他（例如：如處於相等/相類於財產授予人/受託人/保護人或執行人/受益人位置的人為另一實體，對該實體行使控制權的個人）	☐	☐	☐

Section 5 Declaration and Undertakings

第 5 部 證明及承諾

I declare that the information provided in this form is, to the best of my knowledge and belief, true, correct and complete.

本人證明就本人所知所信，本表格內所填報的所有資料均屬真實、準確和完整。

I acknowledge and understand and consent that (a) the information contained in this self-certification is collected and may be kept by the financial institution for the purpose of automatic exchange of financial account information, and (b) such information and information regarding the account holder/controlling person and any reportable account(s) may be reported to the tax authority of the country/jurisdiction in which this account(s) is/are maintained and/or US Internal Revenue Service and exchanged with tax authorities of another country/jurisdiction or countries/jurisdictions in which the account holder/controlling person may be tax resident pursuant to intergovernmental agreements to exchange financial account information.

本人知悉、理解及同意金融機構可根據有關交換金融帳戶資料的政府間協議，（a）收集本自我證明表格所載資料並可備存作自動交換金融帳戶資料之用途，及（b）把該等資料和關於帳戶持有人/控權人及任何須申報帳戶的資料向該帳戶所在國家/司法管轄區的稅務機關及/或美國國家稅務局申報，從而把資料轉交到帳戶持有人/控權人可能為稅務居民的國家/司法管轄區的稅務機關。

The following certification is applicable for a U.S. person (i.e. you have ticked “Yes” in the relevant question of Section 2 above) only:

Under penalty of perjury, I certify that:

- (i) The number shown on this form is my correct U.S. Taxpayer Identification Number; and
- (ii) I am not subject to backup withholding because: (a) I am exempt from backup withholding, or (b) I have not been notified by the U.S. Internal Revenue Service (IRS) that I am subject to backup withholding as a result of a failure to report all interest or dividends, or (c) the U.S. IRS has notified me that I am no longer subject to backup withholding; and
- (iii) I am a U.S. citizen or other U.S. person.

For a U.S. person, you are required to provide the certifications contained in the above paragraph. The U.S. IRS does not require your consent to any provision of this document other than the certifications required to avoid backup withholdings.

下列聲明只適用於美國人士（即閣下就上述第二部分有關問題的答案為「是」）：

在願受作假證供的懲處下，本人聲明：

- (i) 本表格所示的號碼是本人正確的美國稅務編號（Taxpayer Identification Number）；及
- (ii) 本人不需要繳納後備預扣稅，因為(a) 本人獲豁免不需繳納後備預扣稅，或(b) 本人未有收到美國國家稅務局(「美國國稅局」)通知指因本人未能申報所有利息或股息而需繳交後備預扣稅，或(c)美國國稅局告知本人不再需要繳交後備預扣稅；及
- (iii) 本人是美國公民，或其他美國人士。

如閣下為美國人士，閣下須同意上述的聲明。美國國稅局並不要求閣下同意其他與避免預扣稅無關的條文。

The following certification is applicable for a non-U.S. person (i.e. you have ticked “No” in the relevant question of Section 2 above) only:

Under penalties of perjury, I declare that I have examined the information on this form and to the best of my knowledge and belief it is true, correct, and complete. I further certify under penalties of perjury that:

- (i) I am the individual that is the beneficial owner (or am authorized to sign for the individual that is the beneficial owner) of all the income to which this form relates or am using this form to document myself for FATCA purposes; and
- (ii) The person named on Section 1 is not a U.S. person.

下列聲明只適用於非美國人士（即閣下就上述第二部分有關問題的答案為「否」）：

在願受作假證供的懲處下，本人聲明已檢查本表格中所填寫的資料，且據本人所知與所信，所填的資料均為真實、正確及完整。此外，本人願受偽證罪的法律制裁下，確認下列事項：

- (i) 本人為本表格涉及的所有收入的最終受益人（或授權代表最終受益人簽署的人士），或運用本表以聲明其 FATCA 身分；及
- (ii) 於第一部分所示之人名非為美國人士。

I undertake to **advised provide an updated self-certification form within 30 days** of the occur

本人承諾，如情況有所改變，以致本表格所

Su

Account Holder/Controlling Person/Authorized Person signature:

帳戶持有人/控權人/獲授權人簽名：

[Signature] 簽署

[Print name] 正楷姓名

[Date (dd/mm/yyyy)] 日期（日/月/年）

Note: If you are not the account holder/controlling person, please indicate the capacity in which you are signing the form. **If signing under a power of attorney**, please also attach a certified copy of the power of attorney.

注意：若您不是帳戶持有人/控權人，請述明您的代表身份。如果您是以授權人身份簽署，請提供該授權書之核證副本。

Capacity in which declaration is made (If signing under a power of attorney, attach a certified copy of the power of attorney.)

簽署人之身份 (如果你是以授權人身份簽署這份表格，須夾附該授權書的核證副本。):

备注: